

(3) preliminary or temporary injunctive relief is necessary.” (*Id.* § 5950(a).) “Failure to file a certificate pursuant to subdivision (a) is grounds for a demurrer or a motion to strike unless the court finds that dismissal of the action for failure to comply with this article would result in substantial prejudice to one of the parties.” (*Id.* § 5950(b).)

4.

CASE #	CASE NAME	HEARING NAME
CVME2600067	BASS VS CLENNAN	HEARING ON PRELIMINARY INJUNCTION

Tentative Ruling: Preliminary Injunction denied. Accompanying ex-parte relief is denied.

This is an action to stop an allegedly wrongful foreclosure and other causes of action brought by plaintiff Quinn Bass, the owner of the subject property located on Paul Road in Aguanga, against Mortgage Solutions of Colorado and its President/CEO, Rob Clennan. Plaintiff had previously brought a motion for a preliminary injunction, which the court had denied on March 6, 2026.

Plaintiff has since amended his complaint. The background facts are still the same: On November 18, 2024, plaintiff entered into an agreement with Mortgage Solutions to borrow \$350,000.00 (First Amended Complaint, ¶11), with the note to be secured by a deed of trust on the subject property. In exhibits to the original complaint, of which the court can take judicial notice, It shows that plaintiff signed the documents as: “By: bass, quinn—W.O.P.” (Original Complaint, Exhibit “A”). On November 20, 2024, Mortgage Solutions sent to plaintiff a letter stating: “our company requires all loan documents to be signed in a borrower’s legal name, without any qualifications such as ‘without prejudice’ or ‘WOP’. Qualifications such as this are historically used to denote a condition or limited offer and, or to pursue claims that a document is not enforceable against the signer. The legal nature of the mortgage documents require your unequivocal agreement to the terms as outlined in the documents. If a borrower insists on using such qualifications, it may indicate they do not intend to pay their mortgage, or intend to not have the mortgage, note, or deed of trust enforceable against them. Therefore, use of these qualifications may mean borrowers are requesting funds for their loan under false pretense and/or to pursue fraud. As a result of compliance with anti-mortgage fraud laws, and general aversion to high-risk transactions such as these, our company will not proceed to fund or otherwise advance a loan where a borrower insists on signing his or her name with these types of qualifications.” (Original Complaint, Exhibit “C”). On November 20, 2024, plaintiff signed the documents as Quinn Bass, writing at the top of the deed of trust “(Second Note) (Signed Under Economic) Duress”. (Original Complaint, Exhibit “C”).

On December 16, 2024, plaintiff sent defendants a notice of rescission, purportedly rescinding the loan and security interest. (Original Complaint, Exhibit “B”). He also in December of 2024 executed a quitclaim deed transferring his interest to the Q Ali Bey Express Trust. (*Id.*) Various other documents followed, such as UCC Financing Statements and complaints about being reported to credit reporting agencies for not paying the note, but on May 30, 2025, defendant Affinia Default Services, LLC filed a notice of default and election to sell under deed of trust (Original Complaint, Exhibit “K”),

also served on the plaintiff. The notice states that plaintiff was behind on his payments and owed \$18,281.49 as of May 29, 2025, in past due payments.

In the FAC, plaintiff alleges causes of action for (1) injunctive relief; (2) wrongful foreclosure; (3) violation of the Homeowner Bill of Rights; (4) fraud/duress/fraudulent concealment; (5) breach of contract; (6) quiet title; (7) declaratory relief; (8) violation of the Rosenthal Fair Debt Collection Practices Act; and (9) accounting. On July 31, 2026, the Trustee (Affina Default Services) filed a notice of trustee's sale, setting the sale for August 27. Plaintiff promptly filed an ex-parte application to halt the sale, which the court denied while setting a hearing on this injunction for the day before the sale.

"The purpose of a preliminary injunction is to preserve the status quo until there is a final determination of a cause of action." (*Ass'n for Los Angeles Deputy Sheriffs v. County of Los Angeles* (2008) 166 Cal.App.4th 1625, 1634.) Pursuant to C.C.P. §526(a)(3), a preliminary injunction may issue:

When it appears, during the litigation, that a party to the action is doing, or threatens, or is about to do, or is procuring or suffering to be done, some act in violation of the rights of another party to the action respecting the subject of the action, and tending to render the judgment ineffectual.

The plaintiff has the burden to prove all elements necessary to support the issuance of a preliminary injunction. (*O'Connell v. Superior Court* (2006) 141 Cal.App.4th 1452, 1481.) "An injunction ... must be supported by actual evidence that there is a realistic prospect that the party enjoined intends to engage in the prohibited activity." (*Korean Philadelphia Presbyterian Church v. California Presbytery* (2000) 77 Cal.App.4th 1069, 1084.) "In deciding whether to issue a preliminary injunction, a court must weigh two 'interrelated' factors: (1) the likelihood that the moving party will ultimately prevail on the merits and (2) the relative interim harm to the parties from issuance or non-issuance of the injunction." (*Butt v. State of California* (1992) 4 Cal.4th 668, 678.) A preliminary injunction cannot be issued unless it is reasonably probable that the moving party will prevail on the merits. (*San Francisco Newspaper Printing Co. v. Superior Court* (1985) 170 Cal.App.3d 438, 442.)

The loss of one's home is always a significant harm, but the problem with this case has always been the lack of a probability that plaintiff will prevail on the merits. Plaintiff's current motion does not better address this than his previous motion did. The present motion focuses primarily on supposed "different figures at different stages" (Ex Parte Application, p. 5), but there is nothing irregular on their face about the numbers being presented: with a note providing for monthly payments the amount due is going to increase, and at some point the lender will accelerate the loan, a common term in these transactions. So nothing on the face of the figures provided seems improper. The burden here is on the plaintiff to present the necessary admissible evidence to establish probability. (*Fleishman v. Superior Court* (2002) 102 Cal.App.4th 350, 356.) A delay of the sale merely to require the defendant to prove that the property may be foreclosed on is inconsistent with the statutory scheme authorizing nonjudicial foreclosures. (*Hicks v. E.T. Legg & Associates* (2001) 89 Cal.App.4th 496, 503-508 [discussing legislative history]; *Arabia v. BAC Home Loans Servicing, L.P.* (2012) 208 Cal.App.4th 462, 741 [noting that judicial foreclosure does not provide the "quick, inexpensive and efficient

remedy” that judicial foreclosure does].) Shifting the burden from the plaintiff to provide evidence that the foreclosure is improper to the defendant to prove the grounds for foreclosure is contrary to the policies behind the nonjudicial foreclosure process.

Plaintiff’s FAC also alleges a cause of action for violation of HOBR and other causes of action but the motion is similarly deficient in showing, by admissible evidence, a HOBR violation or in showing a valid rescission or that the November 20, 2024, deed of trust was procured by fraud or duress,¹ or any other claim.

¹ In fact the November 18 and November 20 documents appear to be substantively identical.